



OREGON YOUTH AUTHORITY
Policy Statement
Part II – Youth Services (Facilities)



Subject

English Plus – Youth (Facility)

Section – Policy Number:
E: Programming – 2.4

Supersedes:
II-E-2.4 (04/16)
II-E-2.4 (03/07)
II-E-2.4 (04/01)

Effective Date:
04/26/2024

Date of Last Review:
04/26/2026

Related Standards and References:

- [The Civil Rights Act of 1964 \(Titles VI and VII\)](#) and [The Civil Rights Act of 1991](#)
- [English Plus Resolution](#) Reintroduced 1997
- [OAR Chapter 416, Division 20](#) Youth in Custody Grievance Process
- Performance-based Standards (PbS), *Juvenile Correction and Detention Facilities*; Programming; Reintegration
- [OYA policy](#): I-D-2.1 Use of Language Services
- [OYA form](#): YA 1500 Staff Request for Youth to Use English Only
YA 1501 Request for Translation Services – for written documents
YA 1502 Request for Interpretation Services – for spoken/sign language

Related Procedures:

- None

Policy Owner:

Office of Inclusion and Intercultural Relations (OIIR) Director

Approved:



Joseph O'Leary, Director

I. PURPOSE:

This policy provides guidelines for youth, youth families, and staff communication in languages other than English in OYA facilities. This policy is also applicable to the use of signing by deaf or hard of hearing youth and their families or visitors.

II. POLICY DEFINITIONS:

Bilingual: Using or able to use two languages especially with equal fluency.

Limited English Proficient (LEP): LEP individuals, as a result of national origin, are limited in their English proficiency.

- Many LEP individuals are in the process of learning English and may read, write, speak, and/or understand some English, but not proficiently.
- LEP status may be context-specific – an individual may have sufficient English language skills to communicate basic information (name, address etc.) but may not have sufficient English-speaking skills to communicate detailed information (e.g., medical information, treatment groups,

Multidisciplinary Treatment meetings, eyewitness accounts, information elicited in an interview) in English.

III. POLICY:

OYA is aware of the growing diversity of its staff and youth. OYA values and supports language diversity and seeks to provide language-specific and culturally-appropriate services to youth and their families. Even though a youth may understand English at a survival level, the youth may not be at a level that permits adequate comprehension of spoken or written English.

Staff must be aware of the growing language diversity of OYA staff and youth and the need to, at times, use a language other than English. Communication in a youth's native language is encouraged and acceptable among youth, between youth and staff, and youth and their families.

IV. GENERAL STANDARDS:

A. Youth have a right, subject to reasonable justifiable safety and security concerns, to communicate with each other in their native languages, except in situations where all youth are directed to be silent.

1. An immediate directive to an individual youth not to speak the youth's native language must be reasonable and related to safety and security.

The staff member who gave the directive must document the directive on a YA 1500 (Staff Request for Youth to Use English Only) prior to the end of the staff member's workday.

2. A supervisor or manager must review the YA 1500 and forward it to the superintendent or camp director for final review and approval.
3. The supervisor or manager must ensure a copy of the YA 1500 is provided to the Office of Inclusion and Intercultural Relations, and the original is placed in the youth's case file.
4. A superintendent or camp director may restrict a youth from speaking a non-English language with other youth for a specified extended period of time if the youth has repeatedly used the language communication to endanger self or others. The restriction must be documented on a YA 1500.

B. Bilingual staff who have been identified by OYA Human Resources Office as fluent in languages in addition to English must be readily available to facilitate communication between staff and youth (or youth families) who are Limited English Proficient (LEP), non-English-speaking, or deaf or hard or hearing.

See OYA policy I-D-2.1 Use of Language Services for interpreter and translator guidelines.

- C. Staff may only use youth as interpreters in unforeseeable emergencies while waiting for an authorized interpreter.
- D. Facility rules and youth rights must be reviewed with LEP and non-English-speaking youth in the youth's native language.

Staff must provide youth contact information to seek assistance from the Office of Inclusion and Intercultural Relations.

- E. Youth are encouraged to learn English while in OYA custody.
- F. Questions related to this policy, its interpretation or development may be directed to the Office of Inclusion and Intercultural Relations.

V. LOCAL OPERATING PROTOCOL REQUIRED: NO